

Thompson Vs Matagorda County

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS
(42 U.S.C. §§ 1983, 1985(3), 1986)
JURY TRIAL DEMANDED
NOTICE OF SUI JURIS STATUS AND RESERVATION OF RIGHTS

TO THE HONORABLE UNITED STATES DISTRICT COURT:

Plaintiff, DONALD L. THOMPSON, JR., a private citizen residing in Matagorda County, Texas, appears pro se and sui juris, and respectfully alleges the following for his Complaint against the Defendants named herein. Plaintiff brings this action pursuant to 42 U.S.C. §§ 1983, 1985(3), and 1986 to redress the deprivation of his civil rights under the United States Constitution.

Plaintiff expressly states that no rights are waived and all rights are reserved under the U.S. Constitution and applicable law. This Complaint is timely under the discovery rule, as Plaintiff did not become aware of the constitutional basis of the harms until April 20, 2025, due to the deliberate concealment of material facts by County officials.

Plaintiff submitted Notices of Claim to Matagorda County on April 25, May 20, and May 23, 2025, which were ignored. Accordingly, all pre-suit procedural obligations under Texas law are satisfied or excused by actual notice and the County's failure to respond.

Introduction

1. Plaintiff, Donald L. Thompson Jr., is a natural person and a citizen of the United States, residing in Markham, Texas. He brings this action pro se and sui juris.
2. Plaintiff asserts claims arising under the United States Constitution and federal statutes, including 42 U.S.C. §§ 1983, 1985(3), and 1986, for violations of his Fourth, Fifth, Sixth, and Fourteenth Amendment rights.
3. This action arises out of a May 14, 2023, traffic stop, arrest, and subsequent proceedings in Matagorda County, Texas, in which Plaintiff was unlawfully arrested, detained, deprived of property, denied due process, and subjected to malicious prosecution through the coordinated actions of County officials and employees.

I. JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights jurisdiction), as this action arises under the Constitution and laws of the United States, including 42 U.S.C. §§ 1983, 1985(3), and 1986.
5. Venue is proper in the Southern District of Texas, Galveston Division, under 28 U.S.C. § 1391(b), because all of the events giving rise to these claims occurred in Matagorda County, Texas, and all Defendants reside or are employed therein.

II. PARTIES

6. Plaintiff DONALD L. THOMPSON, JR. is a natural person and resident of Matagorda County, Texas. He appears sui juris and without counsel.
7. Defendant MATAGORDA COUNTY is a political subdivision of the State of Texas and may be served through the Matagorda County Judge at the County Courthouse.
8. Defendant JENNIFER CHAU was, at all relevant times, the Matagorda County Attorney. She is sued in both her individual and official capacities.
9. Defendant JUDGE JASON SANDERS is the elected Justice of the Peace for Precinct 1 and is sued in his individual and official capacities.
10. Defendant JUDGE MARK FINLAY is the elected Justice of the Peace for Precinct 4 and is sued in his individual and official capacities.
11. Defendant RAYMOND GONZALES is a deputy with the Matagorda County Sheriff's Office and is sued in both his individual and official capacities.
12. Defendant JOHN DOE DEPUTY is an unknown officer involved in Plaintiff's transport. He is sued in his individual and official capacities.
13. Defendant JANE DOE DEPUTY is an unknown officer who supervised on scene. She is sued in her individual and official capacities.
14. Defendant MICHAELA RILEY is a Records Clerk with the Matagorda County Sheriff's Office and is sued in her individual and official capacities.
15. Defendant JACKSON TOWING SERVICES is a private towing company operating in Matagorda County and may be served through its registered agent.

16. Defendant MATAGORDA COUNTY SHERIFF'S DEPARTMENT is an entity responsible for the supervision and conduct of deputies involved in this case.

17. Defendant MATAGORDA COUNTY ATTORNEY'S OFFICE is the legal department responsible for the oversight of legal conduct in the County and is implicated in acts of suppression and procedural violations.

III. FACTUAL ALLEGATIONS

18. On May 14, 2023, Plaintiff was operating a vehicle with expired registration in Markham, Texas, when he was stopped by a deputy of the Matagorda County Sheriff's Office.

19. Under Texas Transportation Code § 543.003, the offense of expired registration is a Class C misdemeanor that does not authorize custodial arrest. The statute requires that the officer issue a citation and release the individual upon a written promise to appear.

20. Despite this statutory restriction, Plaintiff was handcuffed, placed under custodial arrest, and transported to the Matagorda County Jail, where he was detained for approximately eighteen (18) hours without a warrant, probable cause, or judicial review.

21. On May 15, 2023, Judge Jason Sanders, Justice of the Peace for Precinct 1, conducted a magistration and unlawfully entered a disposition of "time served"

against Plaintiff without jurisdiction, without a plea, and without advising Plaintiff of his rights or legal options.

22. Plaintiff was not issued a citation, advised of his right to counsel, informed of the charges, or given an opportunity to rectify the administrative infraction as provided under Texas Transportation Code § 502.407(c).

23. On June 22, 2023, a vehicle tow hearing was held before Judge Mark Finlay, Justice of the Peace for Precinct 4. County Attorney Jennifer Chau appeared and participated on behalf of the County.

24. During the hearing, Plaintiff's spouse, Virginia L. Thompson, orally requested the production of body-worn and dash camera footage to show the vehicle's location and lawfulness of the tow. At that time, neither Plaintiff nor Mrs. Thompson was aware that the arrest itself had been unlawful under Texas Transportation Code § 543.003 due to concealment of this fact during Plaintiff's detention and magistration.

25. Judge Finlay denied the oral motion for production of the footage without justification, despite knowing the requested evidence would have revealed that both the arrest and the tow were statutorily improper and procedurally unsupported.

26. County Attorney Chau objected to lines of questioning that sought to expose the deputy's misconduct and permitted testimony from a Jackson Towing representative who lacked any firsthand knowledge of the towing circumstances or vehicle location.

27. Judge Finlay ultimately ruled that the tow was lawful, issued no appealable written order, and refused to address or correct the underlying unlawful arrest that triggered the tow, thereby ratifying the violations through an unjust hearing.
28. Michaela Riley, Records Clerk for the Matagorda County Sheriff's Office, denied Plaintiff's indigent request for access to body camera and dash camera footage. Despite the court recognizing Plaintiff's indigency, Ms. Riley refused to honor the fee waiver and created an administrative barrier to obtaining public records necessary to Plaintiff's defense.
29. Plaintiff made multiple attempts to obtain the requested footage before the scheduled hearing. In each instance, he was informed of vague "technical issues" that allegedly prevented access. These issues persisted through and beyond the hearing date, effectively denying Plaintiff access to potentially exculpatory evidence.
30. The cumulative effect of these actions resulted in:
- Deprivation of liberty without due process;
 - Malicious prosecution based on a non-criminal traffic infraction;
 - Unlawful seizure of private property;
 - Suppression of exculpatory evidence in violation of *Brady v. Maryland*, 373 U.S. 83 (1963);
 - Obstruction of justice and denial of a fair hearing.

31. At all times relevant to this Complaint, Defendants were acting under color of state law, as officials, agents, or employees of Matagorda County and its departments, and their actions were taken in their official and personal capacities.
32. The acts and omissions of the named Defendants violated Plaintiff's clearly established rights under the Fourth Amendment (freedom from unreasonable search and seizure), the Fifth and Fourteenth Amendments (due process and equal protection), and the Sixth Amendment (right to a fair and impartial legal proceeding).

IV. CAUSES OF ACTION

Count I – Unlawful Arrest and Detention

(Against Deputy Raymond Gonzales and Judge Jason Sanders in their individual capacities)

33. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
34. On May 14, 2023, Plaintiff was arrested by Defendant Deputy Raymond Gonzales for operating a vehicle with expired registration, a non-jailable offense under Texas Transportation Code § 543.003. The statute requires citation and release unless specific statutory exceptions apply, none of which were present.

35. Plaintiff was not intoxicated, did not refuse to sign a citation, and was not subject to any outstanding warrants. No circumstances existed to justify a custodial arrest.
36. Defendant Gonzales handcuffed Plaintiff, placed him under arrest, and transported him to the Matagorda County Jail, where he was detained for approximately eighteen (18) hours without judicial review.
37. On May 15, 2023, Defendant Judge Jason Sanders conducted an unlawful magistration and imposed a disposition of “time served” without any judicial proceeding, plea, or finding of guilt, thereby continuing Plaintiff’s unlawful detention without legal authority.
38. At the time of arrest, Defendant Gonzales knew or reasonably should have known that placing Plaintiff in custody for a non-jailable offense violated clearly established statutory and constitutional rights.
39. The arrest and detention were unreasonable, excessive, and conducted without probable cause, violating Plaintiff’s rights under the Fourth Amendment (unreasonable seizure) and Fourteenth Amendment (liberty without due process).
40. Plaintiff remained incarcerated for approximately eighteen (18) hours without a hearing or opportunity to challenge the detention, causing a substantial deprivation of liberty, dignity, and personal autonomy.
41. Defendant Judge Jason Sanders imposed a disposition of “time served” without any:
- Adjudication of guilt;
 - Entry of a plea;

- Hearing on the merits;
- Opportunity for Plaintiff to rectify the administrative offense under Texas law.

42. These actions perpetuated the unlawful detention and falsely conveyed the impression of a legitimate conviction, further violating Plaintiff's due process rights.

43. As a direct and proximate result, Plaintiff suffered:

- Loss of liberty;
- Emotional distress;
- Public embarrassment;
- Financial harm;
- Reputational damage;
- Ongoing legal injury due to the presence of a false court record.

Count II – Deprivation of Due Process and Brady Violations

(Against Jennifer Chau, Michaela Riley, Judge Mark Finlay, and Judge Jason Sanders in their individual capacities)

44. The Fourteenth Amendment guarantees all persons the right to due process of law, including the right to a fair hearing and access to exculpatory evidence in both criminal and quasi-criminal proceedings.

45. Defendant Jennifer Chau, then serving as Matagorda County Attorney, was notified of the scheduled tow hearing for June 22, 2023, and appeared on behalf of the County.
46. At that hearing, Ms. Chau knowingly withheld material body camera and dash camera footage that would have shown the legality of the arrest, vehicle location, and legitimacy of law enforcement actions.
47. This evidence was material and exculpatory under *Brady v. Maryland*, 373 U.S. 83 (1963), and its suppression violated Plaintiff's due process rights.
48. Plaintiff made multiple written and oral requests for the footage both before and during the hearing, including an oral motion at the start of the hearing. These requests were denied or ignored without justification.
49. Michaela Riley, Records Clerk, was informed of Plaintiff's indigency as recognized by the court. Despite this, she:
- Refused to waive the associated fees;
 - Directed Plaintiff to the County Attorney's Office, which offered no assistance;
 - Cited vague "technical issues" that prevented access to the footage but failed to notify the court of the obstruction.
50. The actions of Defendants Chau and Riley created deliberate and unlawful obstacles that deprived Plaintiff of a meaningful opportunity to contest the legality of his arrest and the subsequent towing of his vehicle. The concealed footage would likely have demonstrated that the arrest and towing were both unlawful.

51. As a result of this suppression and obstruction, Plaintiff was:

- Denied a fair and impartial hearing;
- Deprived of access to material exculpatory evidence;
- Subjected to ongoing harm through the concealment of facts that would have supported his defense.

52. These acts, both individually and collectively, constitute willful violations of Plaintiff's rights under the Due Process Clause of the Fourteenth Amendment.

Count III – Malicious Prosecution

(Against Jennifer Chau, Judge Jason Sanders, and Judge Mark Finlay in their individual capacities)

53. The offense for which Plaintiff was arrested—expired vehicle registration—is a non-criminal, Class C administrative violation under Texas law. It does not authorize custodial arrest or punishment absent specific aggravating circumstances, which were not present.

54. Despite the non-criminal nature of the offense, Plaintiff was:

- Taken into custody without a warrant;
- Detained for more than eighteen (18) hours;
- Processed without formal criminal charge;
- Adjudicated by Judge Jason Sanders with a “time served” disposition despite no plea, no finding of guilt, and no legal authority to impose punishment.

55. These actions were undertaken knowingly, without probable cause, and in direct violation of Texas law. They reflect retaliatory intent and a conscious disregard for Plaintiff's rights.
56. Following Plaintiff's release, County Attorney Jennifer Chau continued to support and legitimize the false arrest by:
- Misrepresenting the legality of the stop and arrest at the tow hearing;
 - Blocking access to exculpatory evidence;
 - Permitting and relying on testimony from a towing representative with no firsthand knowledge of the vehicle's location.
57. Judge Mark Finlay ratified this conduct by allowing the hearing to proceed based on unsupported testimony, refusing to compel evidence or witnesses, sustaining objections that shielded misconduct, and ultimately issuing a ruling that affirmed and extended the harm caused by the unlawful arrest.
58. The combined actions of the Defendants created a false legal record, disguised official misconduct as lawful process, and caused ongoing constitutional, economic, and reputational harm to Plaintiff and his household.
59. Plaintiff continues to suffer from a fabricated record of conviction imposed without a plea or adjudication, under false pretenses, and supported by deliberate concealment of exonerating facts by County officials.

60. These actions constitute malicious prosecution under 42 U.S.C. § 1983 and were conducted in retaliation for Plaintiff asserting his rights and attempting to challenge the unlawful seizure of his liberty and property. The concealment and coordination among officials significantly exacerbated the harm.

Count IV – Civil Conspiracy to Violate Constitutional Rights

(Against Jennifer Chau, Judge Jason Sanders, Judge Mark Finlay, Raymond Gonzales, Michaela Riley, and other named Defendants in their individual capacities)

61. At all relevant times, Defendants were acting under color of state law and within the scope of their official duties as employees or agents of Matagorda County.

62. Defendants knowingly and intentionally entered into an agreement, express or implied, to deprive Plaintiff of his constitutional rights, including:

- Freedom from unlawful arrest and detention;
- Freedom from unreasonable search and seizure;
- The right to due process of law;
- The right to access exculpatory evidence and a fair hearing.

63. Overt acts taken in furtherance of this conspiracy included:

- Conducting a custodial arrest for a non-custodial administrative offense;
- Concealing bodycam and dashcam footage essential to Plaintiff's defense;
- Participating in a biased and procedurally defective tow hearing;
- Withholding material records and obstructing Plaintiff's access to information;

- Permitting false or unreliable testimony to be admitted without challenge;
- Suppressing Plaintiff's attempts to challenge government misconduct.

64. Each Defendant knowingly played a role in initiating, enabling, facilitating, or concealing the unlawful acts. Their failure to intervene transformed negligent procedures into deliberate violations of Plaintiff's civil rights.

65. As a direct result of this conspiracy, Plaintiff suffered:

- Deprivation of liberty and property;
- Emotional trauma;
- Reputational harm;
- Financial losses.

66. The nature and coordination of these actions support liability under 42 U.S.C. § 1985(3), and mirror the type of civil conspiracy prohibited under 18 U.S.C. § 241, reinforcing the knowing and willful deprivation of constitutional rights.

67. Plaintiff seeks compensatory and punitive damages against each Defendant, as well as declaratory relief and such other remedies as the Court deems just and proper.

Count V – Monell Liability for Unconstitutional Policies and Practices

(Against Matagorda County)

68. Defendant Matagorda County is liable under 42 U.S.C. § 1983 because it maintained official policies, customs, or permitted de facto practices by its

employees that were the moving force behind the constitutional violations suffered by Plaintiff.

69. These policies and customs included:

- Permitting custodial arrests for non-jailable administrative offenses in violation of Texas law;
- Failing to ensure Justices of the Peace adhered to constitutional due process standards;
- Tolerating the withholding of exculpatory evidence;
- Allowing administrative obstructions to public records access;
- Failing to train or supervise law enforcement, court staff, and legal officers regarding constitutional obligations.

70. The County's failure to implement proper policies and training reflects deliberate indifference to the rights of individuals who interact with County officials.

71. Matagorda County knew or should have known that its inadequate supervision and training would lead to constitutional violations, including those experienced by Plaintiff.

72. As a direct and foreseeable result of these systemic failures, Plaintiff was subjected to unlawful arrest, denial of due process, malicious prosecution, and the concealment of exculpatory evidence.

73. Accordingly, Matagorda County is liable under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), for the actions and omissions of its officials acting pursuant to custom, policy, or longstanding practice.

V. DAMAGES

74. As a direct and proximate result of Defendants' unlawful actions and omissions, Plaintiff has suffered the following damages:

- a. Loss of liberty through eighteen (18) hours of unconstitutional detention;
- b. Emotional distress and mental anguish resulting from unlawful arrest, confinement, and abuse of judicial process;
- c. Financial harm, including vehicle tow and retrieval fees, lost income, and legal-related costs;
- d. Reputational damage from being falsely processed, adjudicated, and publicly stigmatized;
- e. Legal disability resulting from a false court record, including impaired standing and risk of future adverse use;
- f. The harm Plaintiff endured is consistent with federal precedent. In *Trezevant v. City of Tampa*, 741 F.2d 336 (11th Cir. 1984), a jury awarded \$25,000 in compensatory damages for an unlawful detention lasting just twenty-three (23) minutes—equating to \$65,217 per hour in 1984. Adjusted for inflation to May

2023, that figure equals approximately **\$182,944.59 per hour**. Applied to Plaintiff's 18-hour detention, the comparable compensable value exceeds **\$3.2 million**;

g. Other consequential and compensable damages to be proven at trial.

VI. PRAYER FOR RELIEF

WHEREFORE, PREMISES CONSIDERED, Plaintiff respectfully requests that this Court:

1. Enter judgment in favor of Plaintiff and against all named Defendants, jointly and severally, for violations of his constitutional rights under 42 U.S.C. §§ 1983 and 1985(3);
2. Declare that the actions of Defendants violated Plaintiff's clearly established rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments;
3. Award compensatory damages in an amount to be determined at trial, including:
 - Damages supported by federal precedent, including *Trezevant v. City of Tampa*, 741 F.2d 336 (11th Cir. 1984), which supports a compensatory value in excess of \$3.2 million for Plaintiff's 18-hour unlawful detention;
4. Award punitive damages against individual Defendants for willful misconduct, deliberate indifference, and reckless disregard of Plaintiff's rights;

5. Award injunctive relief, including:

- Removal or sealing of any false or unlawful court records relating to Plaintiff's arrest and adjudication;
- Any appropriate orders to ensure non-repetition of the practices challenged herein;

6. Award reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988, should counsel be retained;

7. Grant such other and further legal or equitable relief as the Court deems just and proper under the circumstances.

VII. IMMUNITY DEFENSES NOT APPLICABLE

Plaintiff alleges that the acts and omissions of Defendants fall outside the scope of judicial, prosecutorial, or qualified immunity. The conduct at issue:

- Was performed in an administrative, investigative, or non-judicial capacity;
- Occurred in clear absence of jurisdiction or lawful authority;
- Violated clearly established constitutional rights;
- Was performed willfully or with deliberate indifference;
- Is not entitled to immunity under any applicable doctrine or precedent.

Accordingly, Defendants are not immune from liability under 42 U.S.C. §§ 1983 or 1985(3).

VIII. TIMELINESS AND TOLLING OF CLAIMS

Although the events giving rise to this Complaint occurred in May and June 2023, Plaintiff did not discover the constitutional basis of the violations until **April 20, 2025**, after researching applicable law and uncovering evidence that had been concealed.

Plaintiff submitted Notices of Claim on April 25, May 20, and May 23, 2025, to Matagorda County. No response was received.

Therefore, pursuant to the **discovery rule**, **doctrine of fraudulent concealment**, and principles of **equitable tolling**, this Complaint is timely filed.

IX. SUPPORTING EVIDENCE AND DOCUMENTATION

Plaintiff reserves the right to submit or attach the following materials at the appropriate procedural stage:

Notices of Claim submitted to Matagorda County;

Public records requests and responses;

Jail intake and release records;

Tow receipt or impound documentation;

Bodycam/dashcam request logs and denials;

Hearing records;

Correspondence with County departments;

Photographic or video evidence of the arrest site;

Timeline of Plaintiff's efforts to secure records;

Legal precedent references, including **Trezevant v. City of Tampa**, 741 F.2d 336 (11th Cir. 1984).

X. JURY DEMAND

Plaintiff respectfully demands a trial by jury on all issues so triable, pursuant to Federal Rule of Civil Procedure 38(b).

XI. VERIFICATION

I, Donald L. Thompson Jr., declare under penalty of perjury under the laws of the United States that the foregoing is true and correct to the best of my knowledge, information, and belief.

Executed on: July 2, 2025

Markham, Texas

/s/ Donald Lynn Thompson Jr.
DONALD LYNN THOMPSON JR.
Sui Juris, All Rights Reserved
P.O. Box 521
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Dated: July 2, 2025

Clerk of the Court

United States District Court
Southern District of Texas – Galveston Division
312 S. Main Street, Room 406
Victoria, TX 77901

RE: Rule 27(a) Petition to Perpetuate Testimony and Preserve Evidence

In the Matter of Donald L. Thompson Jr.
Civil Action No. [To be assigned]

Dear Clerk of Court:

Enclosed for filing, please find the following documents in support of Petitioner Donald L. Thompson Jr.'s Rule 27(a) Petition to Perpetuate Testimony and Preserve Evidence:

1. Petition to Perpetuate Testimony and Preserve Evidence Pursuant to Rule 27(a);
2. Proposed Order Granting Petition to Perpetuate Testimony and Preserve Evidence;
3. Declaration of Donald L. Thompson Jr. Regarding New Awareness of Constitutional Violations and Tolling of Claims;
4. Certificate of Service.

These documents are submitted in anticipation of filing formal claims under 42 U.S.C. § 1983 for alleged constitutional violations arising from events occurring in Matagorda County, Texas, where local officials presently occupy judicial and prosecutorial seats. Due to conflicts of interest, Petitioner seeks relief exclusively within the jurisdiction of this Court.

Petitioner respectfully requests the Court's review and issuance of the attached proposed Order. Petitioner will serve all named parties upon receipt of the Court's docketing information.

Thank you for your attention to this matter.

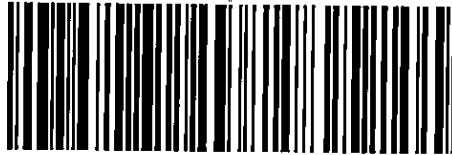
Respectfully submitted,

A black and white image of a handwritten signature, which appears to be "Donald Lynn Thompson Jr.", written in ink on a light background.

/s/ Donald Lynn Thompson Jr.
DONALD LYNN THOMPSON JR.
Sui Juris, All Rights Reserved
P.O. Box 521
Markham, TX 77456
ginnyleethompson430@gmail.com
donniethompson430@gmail.com
Dated: July 2, 2025

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USPS CERTIFIED MAIL**9214 8901 4298 0421 6620 00**

CERTIFIED MAIL

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See Important Information Enclosed

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